

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF VARACHENKOV AND OTHERS v. RUSSIA

(Applications nos. 23169/18 and 23 others –
see appended list)

JUDGMENT

STRASBOURG

9 November 2023

This judgment is final but it may be subject to editorial revision.



In the case of Varachenkov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 19 October 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers and participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention. Some applicants also invoked Article 10; however, these complaints fall to be examined under Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in in *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, § 489, 7 February 2017, *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public

assemblies; *Dirdizov v. Russia*, no. 41461/10, §§ 108-11, 27 November 2012, concerning excessive length of pretrial detention; *Idalov v. Russia,* [GC], no. 5826/03, §§ 154-58, 22 May 2012, about delays in examination of the complaints against detention orders; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-225, 26 April 2016, related to disproportionate measures taken by the authorities against participants of solo manifestations; *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, concerning administrative convictions for making calls to participate in public events; *Lashmankin and Others*, cited above, § 359, concerning restrictions on location, time or manner of conduct of public events; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, and *Tsvetkova and Others*, cited above, §§ 178-88, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention; *Korneyeva*, cited above, §§ 62-65, as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that there has been a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. Holds

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 9 November 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty (relevant article of the CAO, if relevant)	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	23169/18 30/04/2018	**Vasiliy Andreyevich VARACHENKOV** 1995 **Aleksandr Maksimovich RYABUSHKIN** 1992 **Dmitriy Romanovich GRUZDEV** 1992	Nikolay Sergeyevich Zboroshenko Mytishchi	Rally against corruption Moscow 05/11/2017	article 19.3 § 1 of CAO, article 20.2 § 6.1 of CAO	Mr Varachenkov: administrative detention of 15 days (art. 19.3 § 1) and fine of RUB 15,000 (art. 20.2. 6 § 1) Mr Ryabushkin: administrative detention of 15 days (art. 19.3 § 1) and fine of RUB 10,000 (art. 20.2. 6 § 1) Mr Gruzdev: fine of RUB 10,000 (art. 20.2. 6 § 1)	Moscow City Court: 08/11/2017 and 28/03/2018 (Mr Varachenkov), 14/11/2017 and 14/03/2018 (Mr Ryabushkin), 28/03/2018 (Mr Gruzdev)	Art. 5 (1) – unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": from 1.30 p.m. on 05/11/2017 to 06/11/2017 (Mr Gruzdev), and from 1.30 p.m. on 05/11/2017 to 07/11/2017, the hearings in the applicants' administrative-offence cases (Mr Varachenkov and Mr Ryabushkin); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Moscow City Court, 08/11/2017, 14/11/2017, 14/03/2018 and 28/03/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings – Mrs Varachenkov and Ryabushkin were convicted twice for participation in the same public event on 05/11/2017: under art.19.3 § 1 (administrative detention) and under art. 20.2. 6 § 1 of the CAO (administrative fines)	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty (relevant article of the CAO, if relevant)	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
2.	23799/18 10/05/2018	**Yuriy Viktorovich KAZAKOV** 1965	Oleg Aleksandrovich Yelanchik Moscow	Opposition rally Moscow 05/11/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 15 days (art. 19.3 § 1), fine of RUB 20,000 (art. 20.2 § 5)	Moscow City Court, 10/11/2017 and 30/03/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 4.20 p.m. on 05/11/2017 to 07/11/2017, the hearing in the administrative offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Moscow City Court, 10/11/2017 and 30/03/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 (administrative detention), and under art. 20.2 § 5 of the CAO (fine)	5,000
3.	24367/18 12/05/2018	**Daniil Valentinovich VORONTSOV** 1982	Nadezhda Viktorovna Yermolayeva Moscow	Opposition rally Moscow 05/11/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 15 days (art. 19.3 § 1), fine of RUB 15,000 (art. 20.2 § 5)	Moscow City Court, 17/11/2017 and 26/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Moscow City Court, 17/11/2017 and 26/03/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 (administrative	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty (relevant article of the CAO, if relevant)	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								detention), and under art. 20.2 § 5 of the CAO (fine)	
4.	24743/18 08/05/2018	**Maksim Mikhaylovich KOLYBELNIKOV** 1985	Irina Aleksandrovna Yatsenko Moscow	Opposition rally Moscow 05/11/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 15 days (art. 19.3 § 1), fine of RUB 15,000 (art. 20.2 § 5)	Moscow City Court, 08/11/2017 and 26/03/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 4 p.m. on 05/11/2017 to 07/11/2017, the hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in respect of both sets of the administrative-offence proceedings – final decisions: Moscow City Court, 08/11/2017 and 26/03/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event of 05/11/2017: under art. 19.3 § 1 (administrative detention), and under art. 20.2 § 5 of the CAO (fine)	5,000
5.	24799/18 13/05/2018	**Andrey Vladimirovich IOSS** 1972	Oleg Aleksandrovich Yelanchik Moscow	Opposition rally Moscow 05/11/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 15 days (art. 19.3 § 1), fine of RUB 20,000 (art. 20.2 § 5)	Moscow City Court, 13/11/2017 and 12/04/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 4 p.m. on 05/11/2017 to 07/11/2017, the hearing in the	5,000

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								administrative-offence case; no record of the detention was drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Moscow City Court, 13/11/2017 and 12/04/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 (administrative detention), and under art. 20.2 § 5 of the CAO (fine)	
6.	30608/18 18/06/2018	**Alexey Sergeyevich ZELENOV** 1993	Memorial Human Rights Centre Moscow	Opposition rally Moscow 12/06/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	fines of RUB 1,000 (art. 19.3 § 1) and RUB 15,000 (art. 20.2 § 5)	Moscow City Court, 06/03/2018 and 28/03/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 3.30 p.m. on 12/06/2017 to 0.40 a.m. on 13/06/2017; the time indicated in the record of the administrative arrest was at variance with the time argued by the applicant; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings –	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty (relevant article of the CAO, if relevant)	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								final decisions: Moscow City Court, 06/03/2018 and 28/03/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 of CAO (fine of RUB 1,000), and under art. 20.2 § 5 of the CAO (fine of RUB 15,000)	
7.	31415/18 14/06/2018	**Yevgeniy Valikhanovich MUSIN** 1980		Rally against Mr Putin's re-election as President St Petersburg 28/01/2018 Rally against constitutional amendments St Petersburg 16/07/2020	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO article 20.2 § 8 of CAO	fine of RUB 500 (art. 19.3 § 1), fine of RUB 10,000 (art. 20.2 § 5) administrative detention of 20 days	St Petersburg City Court, both decisions of the same date 29/03/2018 St Petersburg City Court 21/07/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 2.00 a.m. on 18/07/2020 to 3.20 p.m. on 19/07/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 29/03/2018 and 21/07/2020; Art. 11 (1) - restrictions on location, time or manner of conduct of public events – the local administration refused to authorise the pickets ("cubes") the applicant planned to organise "within a radius of 15 meters from the cube" on 12-20/08/2017 (daily pickets to inform of the initiatives of Mr Navalnyy). The courts rejected the applicant's complaint (appeal on 18/12/2017,	5,000

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								St Petersburg City Court, last final decision: 07/09/2018, Single Judge of the Supreme Court). The administration considered that the aim "might be interpreted too broadly", without specification of what types of issues would be raised (political/ economic/ social/ cultural), and it questioned the form of the event. There was no proposal for an alternative location. The pickets were not held as a result; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - In respect of the proceedings related to the public event of 28/01/2018: the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 (fine of RUB 500), and under art. 20.2 § 5 of the CAO (fine of RUB 10,000)	
8.	38498/18 06/08/2018	**Anton Olegovich ROZHANSKIY** 1986	Memorial Human Rights Centre Moscow	Opposition rally Moscow 12/06/2017	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	fine of RUB 1,000 (art. 19.3 § 1), fine of RUB 10,000 (art. 20.2 § 5)	Moscow City Court, 08/02/2018 and 30/03/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 4.50 p.m. on 12/06/2017 to 2.15 a.m. on 13/06/2017; the time indicated in the record of the administrative arrest was at variance with the time argued by the applicant;	5,000

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Moscow City Court, 08/02/2018 and 30/03/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 (fine of RUB 1,000), and under art. 20.2 § 5 of the CAO (fine of RUB 10,000)	
9.	47202/18 19/09/2018	**Ilya Mikhaylovich GANTVARG** 1999	Maksim Vladimirovich Olenichev St Petersburg	Rally against Mr Putin's re-election as President St Petersburg 28/01/2018	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 10 days (art.19.3 § 1), fine of RUB 15,000 (art.20.2 § 5)	St Petersburg City Court, 19/03/2018 and 26/04/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 5.30 p.m. on 12/03/2018 to 13/03/2018, the hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 19/03/2018 and 26/04/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty (relevant article of the CAO, if relevant)	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								public event: under art. 19.3 § 1 (administrative detention), and under art. 20.2 § 5 of the CAO (fine)	
10.	47908/18 09/09/2018	**Sergey Andreyevich BOYKO** 1983	Andzhelika Viktorovna Chernyavskaya Oktyabrskiy	Anticorruption rally Novosibirsk 30/09/2017	article 20.2 § 5 of CAO	fine of RUB 10,000	Novosibirsk Regional Court 27/03/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 4.00 p. m. on 21/05/2018 to an unspecified time on 22/05/2018, the hearing in the applicant's administrative offence case related to calls to participate in an unauthorised public event on 05/05/2018, - from 2.40 p.m. on 09/09/2018 to the hearing in the applicant's administrative offence case related to calls to participate in an unauthorised public event of the same day Art. 10 (1) - conviction for making calls to participate in public events: Administrative conviction: 1) under art. 20.2 § 8 of the CAO for calls to participate in an unauthorised rally on 05/05/2018 published in Twitter; 30 days of administrative detention; final decision: Moscow City Court, 25/05/2018; 2) under art. 20.2 § 8 of the CAO for calls to participate in an unauthorised rally on 09/09/2018 published in social network	6,000

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								Vkontakte; 30 days of administrative detention; final decision: Novosibirsk Regional Court, 12/09/2018	
11.	49960/18 10/10/2018	**Anton Yevgenyevich ALYABYEV** 1999	Ivan Yuryevich Zhdanov Vilnius	Rally against Mr Putin's re-election as President Voronezh 05/05/2018	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 5 days (art. 19.3 § 1), fine of RUB 10,000 (art. 20.2 § 5)	Voronezh Regional Court, 21/06/2018 and 05/07/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 6.10 p.m. on 05/05/2018 to 06/05/2018, the hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Voronezh Regional Court, 21/06/2018 and 05/07/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 (administrative detention), and under art. 20.2 § 5 of the CAO (fine)	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty (relevant article of the CAO, if relevant)	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
12.	49965/18 10/10/2018	**Denis Sergeyevich PYLEV** 1987	Ivan Yuryevich Zhdanov Vilnius	Rally against Mr Putin's re-election as President Voronezh 05/05/2018	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 5 days (art. 19.3 § 1), fine of RUB 10,000 (art. 20.2 § 5)	Voronezh Regional Court, 25/06/2018 and 04/06/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 7.10 p.m. on 05/05/2018 to 06/05/2018, the hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Voronezh Regional Court, 25/06/2018 and 04/06/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 (administrative detention), and under art. 20.2 § 5 of the CAO (fine)	5,000

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13.	50046/18 10/10/2018	**Sergey Gennadyevich KARPENKO** 1981	Ivan Yuryevich Zhdanov Vilnius	Rally against Mr Putin's re-election as President Voronezh 05/05/2018	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 2 days (art. 19.3 § 1), fine of RUB 5,000 (art. 20.2 § 5)	Voronezh Regional Court, 21/06/2018 and 04/07/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 7.00 p.m. on 05/05/2018 to 06/05/2018, the hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Voronezh Regional Court, 21/06/2018 and 04/07/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 of CAO (administrative detention), and under art. 20.2 § 5 of the CAO (fine)	5,000
14.	50537/18 10/10/2018	**Vladislav Dmitriyevich TOLSTOV** 1995	Ivan Yuryevich Zhdanov Vilnius	Rally against Mr Putin's re-election as President Voronezh 05/05/2018	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 5 days (art. 19.3 § 1), fine RUB 10,000 (art. 20.2 § 5)	Voronezh Regional Court (both decisions on the same date) 21/06/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 7.15 p.m. on 05/05/2018 to 06/05/2018, the hearing in the applicant's administrative-offence case;	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty (relevant article of the CAO, if relevant)	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Voronezh Regional Court, 21/06/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 of CAO (administrative detention), and under art. 20.2 § 5 of the CAO (fine)	
15.	50820/18 10/10/2018	**Vasiliy Aleksandrovich KOREPANOV** 1997	Ivan Yuryevich Zhdanov Vilnius	Rally against Mr Putin's re-election as President St Petersburg 05/05/2018	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	fine of RUB 500 (art. 19.3 § 1), fine of RUB 10,000 (art. 20.2 § 5)	St Petersburg City Court (both decisions of the same date) 19/06/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence, from 5.30 p.m. on 05/05/2018 to an unspecified time; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 19/06/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under Art. 19.3 § 1 of CAO (fine of	5,000

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								RUB 500), and under Art. 20.2 § 5 of CAO (fine of RUB 10,000)	
16.	50823/18 10/10/2018	**Dmitriy Sergeyevich KANONYKHIN** 1997	Ivan Yuryevich Zhdanov Vilnius	Rally against Mr Putin's re-election as President Voronezh 05/05/2018	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 5 days (art. 19.3 § 1), fine of RUB 10,000 (art. 20.2 § 5)	Voronezh Regional Court (both decisions of the same date), 20/06/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 6.00 p.m. on 05/05/2018 to 06/05/2018, the hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Voronezh Regional Court, 20/06/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 (administrative detention) and under art. 20.2 § 5 of the CAO (fine)	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty (relevant article of the CAO, if relevant)	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
17.	50828/18 10/10/2018	**Yaroslav Yevgenyevich ZUBOTAREV** 1998	Ivan Yuryevich Zhdanov Vilnius	Rally against Mr Putin's re-election as President Voronezh 05/05/2018	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 5 days (art. 19.3 § 1), fine of RUB 10,000 (art. 20.2 § 5)	Voronezh Regional Court (both decisions on the same date) 15/06/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 6.40 p.m. on 05/05/2018 to 06/05/2018, the hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Voronezh Regional Court, 15/06/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 (administrative detention), and under art. 20.2 § 5 of the CAO (fine)	5,000
18.	51361/18 18/10/2018	**Mariya Vladimirovna ALEKHINA** 1988		Rally in support of Telegram Moscow 16/04/2018	article 20.2.2 § 1 of CAO	community works of 100 hours	Moscow City Court 20/04/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence on 02/12/2020 from 6.30 p.m. to 9.00 p.m.; Art. 5 (3) - excessive length of pre-trial detention - the applicant was under house arrest from	6,500

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				Rally of four people against police abuse Moscow 28/11/2020 Rally in commemoration of the First World War (the applicant could not participate because she was apprehended by the police before) Moscow 22/06/2021	article 20.2 § 5 of CAO article 19.3 § 1 of CAO	fine of RUB 15,000 administrative detention of 15 days	Moscow City Court 12/03/2021 Moscow City Court 30/06/2021	29/01/2021 to 20/09/2021. The domestic courts extended the measure by using standard reasoning and listing the grounds provided for by the Code of Criminal Procedure (such as the gravity of the offence, the possibility for the applicant to abscond, put pressure on witnesses, and interfere with the investigation), without linking them to the circumstances of the applicant's case or verifying whether these grounds remained valid at the advanced stages of the proceedings. The appellate courts reproduced the wording of the first-instance courts' decisions and dismissed the applicant's appeals against the house arrest orders; Art. 5 (4) - excessive length of judicial review of detention - appeal against the decision of the Preobrazhenskiy District Court of Moscow of 23/07/2021 extending the applicant's house arrest considered by the Moscow City Court on 19/08/2021; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Moscow City Court, 20/04/2018, 12/03/2021 and 30/06/2021; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentences of administrative detention imposed on the applicant on	

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty (relevant article of the CAO, if relevant)	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								23/06/2021 and 08/07/2021 were executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
19.	58337/18 18/11/2018	**Ivan Sergeyevich MONIKOV** 1984	Ivan Yuryevich Zhdanov Vilnius	Rally against Mr Putin's re-election as President St Petersburg 05/05/2018	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO	administrative detention of 5 days (art. 19.3 § 1), fine of RUB 15,000 (art. 20.2 § 5)	St Petersburg City Court (both decisions of the same date) 29/05/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 5.50 p.m. on 05/05/2018 to 06/05/2018, the hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 29/05/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 (administrative detention), and under art. 20.2 § 5 of the CAO (fine)	5,000

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20.	58871/18 30/11/2018	**Vladimir Yuryevich SHIPITSYN** 1969		Rally for peace and cooperation with western countries St Petersburg 01/05/2018 Rally in support of Crimean Tatars St Petersburg 18/05/2020	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO article 20.2 § 2 of CAO	fine of RUB 900 (art. 19.3 § 1), fine of RUB 10,000 (art. 20.2 § 5) community works of 40 hours	St Petersburg City Court, 30/05/2018 and 26/06/2018 St Petersburg City Court 22/12/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 12.30 p.m. to 11.45 p.m. on 01/05/2018, - from 12.50 p.m. to 5.30 p.m. on 08/05/2018, the hearing in the applicant's administrative-offence case, - from 3.00 p.m. on 01/07/2020 to 02/07/2020, the hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 30/05/2018, 26/06/2018 and 22/12/2020; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event of 01/05/2018: under art. 19.3 § 1 (fine of RUB 900), and under art. 20.2 § 5 of the CAO (fine of RUB 10,000)	5,000
21.	59755/18 04/12/2018	**Aleksandra Aleksandrovna TIMOFEYEVA** 1998	Aleksey Vladimirovich Glukhov Novocheboksarsk	"Hybrid rally" (march and meeting) in support of A. Navalnyy	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 10,000, community works of 20 hours (two separate proceedings under art. 20.2 § 5),	Supreme Court of the Chuvashia Republic, 07/06/2018, 05/06/2018 and 14/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Supreme Court of the Chuvashia	4,000

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				Cheboksary 05/05/2018		and fine of RUB 500 (under art. 19.3 § 1)		Republic, 07/06/2018, 05/06/2018 and 14/06/2018 Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted three times for participating in the same public event: under art. 20.2 § (two separate proceedings resulted in fine of RUB 10,000 and 20 hours of community works), and under art. 19 § 3.1 of the CAO (fine of RUB 500)	
22.	59761/18 04/12/2018	**Sergey Vladimirovich YEGOROV** 1993	Aleksey Vladimirovich Glukhov Novocheboksarsk	"Hybrid rally" (march and meeting) in support of A. Navalnyy Cheboksary 05/05/2018	article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	community works of 20 hours (art. 20.2 § 5), fine of RUB 500 (art. 19.3 § 1)	Supreme Court of the Chuvashia Republic, 05/06/2018 and 15/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Supreme Court of the Chuvashia Republic, 05/06/2018 and 15/06/2018 Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 19.3 § 1 of CAO (fine), and under art. 20.2 § 5 of CAO (community works)	4,000

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23.	8435/20 24/01/2020	**Yuliya Yevgenyevna CHAPURINA** 1991	Igor Nikolayevich Sholokhov Kazan	"Hybrid" rally against construction of waste incineration plant Arkhangelsk 07/04/2019	article 20.2 § 5 of CAO, article 20.2 § 6.1 of CAO	two fines of RUB 10,000 each	Arkhangelsk Regional Court 05/12/2019 and 17/10/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Arkhangelsk Regional Court, 17/10/2019, 05/12/2019 and 02/06/2022; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under art. 20.2 § 5 and under art. 20.2 § 6.1 of the CAO (both times he was punished by a fine); Art. 10 (1) - disproportionate measures against solo demonstrators - solo-picket against the war in Ukraine in Arkhangelsk on 03/04/2022; administrative conviction under article 20.3.3 § 1 of the CAO, fine of RUB 40,000; final decision: Arkhangelsk Regional Court, 02/06/2022	4,000

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24.	11142/21 01/02/2021	**Vitaliy Andreyevich SOKOLOV** 1983	Memorial Human Rights Centre Moscow	Anti-corruption rally Moscow 15/07/2020	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 08/09/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police office for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.30 p.m. on 15/07/2020 to 5.20 a.m. on 16/07/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 08/09/2020	5,000

[1] Plus any tax that may be chargeable to the applicants.